

3. 9:00 AM CASE NUMBER: C24-00171
CASE NAME: VELDA CARR VS. IMRAN SYED
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: SYED, APRYL
TENTATIVE RULING:

The Motion by attorney Herbert N. Wiggins/HEARTHSTONE LEGAL GROUP to be Relieved as Counsel for Defendant Apryl Syed rendered moot by the filed Substitution of Attorney filed April 29, 2026.

4. 9:00 AM CASE NUMBER: C24-00586
CASE NAME: GURPREET SINGH VS. JASPAL SINGH
HEARING IN RE: **NOT ON L&M CALENDAR SETTLEMENT MENTOR HEARING WITH ADR. MUST OCCUR IN PERSON IN D32 JURY ROOM DUE TO INTERPRETER REQUIREMENT**
FILED BY:
TENTATIVE RULING:

Parties to appear for settlement mentor meeting. Please report to Dept. 32 at 725 Court Street, Martinez, unless pre-approved by court to appear by Zoom.

5. 9:00 AM CASE NUMBER: C25-00064
CASE NAME: MILDRED POWELL VS. SUNSET VIEW CEMETERY ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY DEFENDANTS/CONT'D FROM 8/7/26
FILED BY:
TENTATIVE RULING:

Defendant Sunset View Cemetery's Motion for Summary Judgment or Summary Adjudication of Issues is **denied**.

Statement of Facts

Plaintiffs Mildred Powell (Powell) and LaDecie Riley (Riley) bring this action against Defendant Sunset View Cemetery Association (Defendant) arising from the burial of Danielle Renee Riley (the Decedent), who was Powell's daughter and Riley's sister. The parties dispute whether the Decedent was buried in, and remains in, the location specified in the parties' burial contract.

The following facts are drawn from Defendant's Separate Statement of Undisputed Material Facts and Plaintiffs' responses.

Powell and Sunset View entered into a written contract for the Decedent's burial. (Defendant's Separate Statement of Undisputed Material Facts (UMF) 1.) Powell did not ask any questions about the row and grave number identified in the Burial Contract before signing it because the location, Grave 47, Row 47, was explained to her. (UMF 2.) Following the burial, Powell thought the Decedent had been buried in Grave 47, Row 47 because she signed the Burial Contract identifying that plot. (UMF 3.) Defendant asserts that no terms of the Burial Contract were misrepresented to Powell when

she signed it. (UMF 4.) As to Fact Nos. 2 and 4, Plaintiffs respond that while Powell did not ask questions, Plaintiffs do not believe the Decedent was buried in Row 47, Grave 47. (Plfs.' Response to UMF Nos. 2, 4.)

Sunset View offered to open the grave to confirm the Decedent's location. (UMF 5.) Powell signed an authorization allowing the cemetery to do so. (UMF 6, undisputed.) Defendant contends that Powell personally confirmed the Decedent's casket in that process. (UMF 7.) Plaintiffs purport to dispute this fact, but their response states only that Powell did not ask questions about the row and grave number before signing, and Plaintiffs do not believe the Decedent was buried in Row 47, Grave 47. (Plfs.' Response to UMF 7.) Powell's deposition testimony complicates Defendant's characterization of Fact 7. Although Powell testified that she was able to confirm the casket was the Decedent's, she also testified she did not know or recall which grave was opened at the time. (Powell Depo. 71:16-23.)

The Separate Statement next addresses a previously unmentioned location: Row 47, Grave 36. Defendant asserts Powell testified that no one informed her the Decedent had been relocated there (UMF 8). In response, Plaintiffs note that on June 1, 2023, the date of the disinterment, Tanya Nagaraja, the cemetery employee who sold the plot and executed the contract, admitted to Riley, "We made a mistake." (Plfs.' Response to UMF 8.)

Defendant also contends that none of the photographs or videos Powell produced in discovery show an identifying row or grave marker. (UMF 9.) Plaintiffs dispute this by citing the declaration of their expert, Mark L. Peterson, and Exhibit A to Riley's declaration. However, neither source actually describes what any produced photograph or video depicts. (Plfs.' Resp. to UMF 9.)

Defendant also points to an administrative complaint Powell submitted to the Cemetery and Funeral Bureau (UMF 10). On March 29, 2024, the Bureau found 'insufficient evidence to support a violation of the Bureau's laws, rules, or regulations' based on its review of the complaint and records (UMF 11). Plaintiffs object to both facts as hearsay, irrelevant, lacking foundation, assuming facts not in evidence, and eliciting unqualified expert opinion. (Plfs.' Resp. to UMF Nos. 10, 11.) In response, Defendant notes Powell verified the Bureau's finding under penalty of perjury. (UMF 12.)

Defendant argues that because Powell experienced sleeplessness, nightmares, and emotional distress prior to the Decedent's burial, its conduct did not cause her emotional injuries. (UMF Nos. 13, 14.) In response, Plaintiffs maintain that her recurring nightmares are attributable to Sunset View's conduct (Plfs.' Resp. to UMF Nos. 13, 14.)

Defendant argues Powell lacks personal knowledge of fraudulent intent, citing her testimony that she does not know if Nagaraja knowingly wrote the wrong grave number to induce her reliance. (UMF Nos. 15, 16.) Plaintiffs counter with testimony that Nagaraja told Riley the cemetery made a "mistake," prompting supervisor Pennington to tell Nagaraja to stop talking. (Plfs.' Resp. to UMF No. 16.)

Regarding Riley, Defendant shows only that she was not a signatory to the Burial Contract. (UMF 17.) Plaintiffs note, however, that her separate claims sound in negligence, fraud, and UCL section 17200. Defendant also points out that Riley cannot recall being present when Powell was told the original grave had been sold to someone else and cannot identify who said it. (UMF Nos. 18, 19.) Plaintiffs

again dispute this by citing the Nagaraja and Pennington testimony. (Plfs.' Resp. to UMF Nos. 18, 19.)

Plaintiffs' January 10, 2025 complaint alleges six causes of action. Powell alone brings the first two causes of action for breach of contract and breach of the covenant of good faith and fair dealing. Powell and Riley together bring the remaining four for negligence, fraud by concealment, fraud in the execution, and violation of Business and Professions Code section 17200.

II. Legal Standard

Summary judgment or summary adjudication is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. §437c(c).) Where a defendant seeks summary judgment or adjudication, he must show that either "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action." (Id. at §437c(o)(2).) A defendant may satisfy this burden by showing that the claim "cannot be established" because of the lack of evidence on some essential element of the claim. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a "triable issue of one or more material facts exists as to that cause of action or defense thereto." (*Ibid.*)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at §437c(p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option he or she must present evidence "and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence...." (*Aguilar, supra*, 25 Cal.4th at 865-66.)

[A] defendant may simply show the plaintiff cannot establish an essential element of the cause of action "by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Id.* at p. 854.) Thus, rather than affirmatively disproving or negating an element (e.g., causation), a defendant moving for summary judgment has the option of presenting evidence reflecting the plaintiff does not possess evidence to prove that element. "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence--as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing" to support an essential element of his case. (*Aguilar, supra*, at p. 855.) Under the latter approach, a defendant's initial evidentiary showing may "consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action." (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110.)

Thus, a moving defendant has two means by which to shift the burden of proof under the summary

judgment statute: "The defendant may rely upon factually insufficient discovery responses by the plaintiff to show that the plaintiff cannot establish an essential element of the cause of action sued upon. [Citation.] [Or a]lternatively, the defendant may utilize the tried and true technique of negating ('disproving') an essential element of the plaintiff's cause of action." (*Brantly v. Pisaro* (1996) 42 Cal.App.4th 1591, 1598; *Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (*Id.* at §437c(p)(2).)

III. Discussion

Defendant seeks summary judgment or, alternatively, summary adjudication of each of Plaintiffs' six causes of action. As set forth below, procedural defects in Defendant's notice of motion and separate statement preclude summary adjudication, leaving only summary judgment before the court. Because Defendant fails to meet its burden as to at least two causes of action, the motion must be denied in its entirety.

A. The motion is procedurally deficient

First, the motion is summarily denied on the procedural ground that Defendant's notice of motion and separate statement are defective. The notice of motion moves for summary judgment, or in the alternative, summary adjudication, as to Plaintiffs' six causes of action, but does not identify any cause of action, claim for damages, or issue of duty as a separate issue for adjudication, as required by Code of Civil Procedure section 437c, subdivision (f)(1), and California Rules of Court, rule 3.1350(b). The separate statement suffers from the same defect. Rather than organizing the facts by cause of action, with separate headings and a discrete set of facts tailored to each, as rule 3.1350(d)(1) requires, the separate statement presents a single, undifferentiated list of facts that spans all six causes of action without distinguishing among them.

A motion for summary adjudication tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified. (*Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, 743-744 (*Schmidlin*).) Because Defendant never specified which causes of action were subject to adjudication in the alternative, and never organized its separate statement to correspond to any such specification, there is no properly noticed issue for the court to adjudicate.

As explained by the Court of Appeal in *Schmidlin*:

A motion for summary adjudication tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified. The movant must "state[] specifically in the notice of motion and ... repeat[], verbatim, in the separate statement of undisputed material facts," "the specific cause of action, affirmative defense, claims for damages, or issues of duty" as to which summary adjudication is sought. (Former

Cal. Rules of Court, rule 342(b); see now Cal. Rules of Court, rule 3.1350(b).) The motion must be denied if the movant fails to establish an entitlement to summary adjudication of the matters thus specified; the court cannot summarily adjudicate other issues or claims, even if a basis to do so appears from the papers. (See *Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1546, 235 Cal.Rptr. 106 [""If a party desires adjudication of particular issues or subissues, that party must make its intentions clear in the motion ' [Citation.] There is a sound reason for this rule: '... the opposing party may have decided to raise only one triable issue of fact in order to defeat the motion, without intending to concede the other issues. It would be unfair to grant a summary adjudication order unless the opposing party was on notice that an issue-by-issue adjudication might be ordered if summary judgment was denied""].)

(*Id.* at 743-4.)

Because Defendant's notice of motion and separate statement fail to adequately identify the issues to be decided, the court may treat the motion for summary adjudication as a motion for summary judgment only. (Cal. Rules of Court, rule 3.1350(d), (h); *Schmidlin, supra*, 157 Cal.App.4th at 744; *Homestead Sav. v. Superior Court* (1986) 179 Cal.App.3d 494, 497-498.) The motion may therefore be denied in its entirety so long as it fails as to any one cause of action, even where Defendant's showing on the remaining causes of action is otherwise sufficient.

Defendant's reply arguments do not address the defect. Plaintiffs' opposition raises the procedural defect as follows: Defendant's Separate Statement fails to comply with rule 3.1350, subdivisions (b) and (d)(1), because "each cause of action was not separately stated." (Opp. 2:9-12.) Defendant's reply characterizes Plaintiffs' objection as a complaint that evidence was not presented "in precisely the manner Plaintiffs prefer," and relying on rule 3.1350(b) and *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 311, 315, for the proposition that a summary adjudication motion may depend on the same evidentiary record as the summary judgment motion, and that a trial court retains discretion to consider evidence not contained in a separate statement.

Rule 3.1350(b) has two sentences. The first, which Defendant quotes, permits a shared evidentiary record. The second, which is omitted, requires that "the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement." Sharing evidence is a different question from identifying which causes of action the evidence supports. *San Diego Watercrafts* addressed whether a court can consider evidence not included within an otherwise proper separate statement, not whether the notice of motion or separate statement must identify the issues for adjudication.

Treating the motion as one for summary judgment, the Court finds that Defendant failed to shift the burden on the location of the Decedent's remains. Because Defendant's failure on the breach of contract and negligence claims alone requires denial of summary judgment, the Court need not address the remaining causes of action.

B. Defendant did not shift the burden through affirmative evidence or sufficient discovery responses

Defendant elected to proceed under the second of the two methods described in Aguilar for shifting

the burden on summary judgment, that is, by attempting to show that Plaintiff Powell lacks and cannot reasonably obtain evidence to support her claims, rather than by furnishing affirmative evidence negating the elements of Plaintiffs' causes of action. Defendant's position is that Decedent was buried in Row 47, Grave 47 as specified in the contract, and has remained there ever since. Yet Defendant did not submit a declaration from anyone at Sunset View, such as a cemetery employee or records custodian, attesting from personal knowledge or business records that this is true.

Instead, Defendant relies almost entirely on the absence of supporting detail in Powell's own testimony and discovery responses. Defendant points to Powell's admission that no photographs or videos she produced depict any identifying marker showing a row or grave number (UMF 9), and to her testimony that no one informed her the Decedent had been relocated. (UMF 8.) But an absence of markers in Plaintiff's own photographs establishes only the limits of her photographic evidence, not the limits of the evidentiary record as a whole.

Nor does the record reflect that Defendant sought discovery responses tied to witnesses with actual knowledge of where the Decedent was buried and whether her remains were disturbed. Defendant's separate statement identifies Tanya Nagaraja, the cemetery employee who sold the grave and prepared the contract, and Scott Pennington, the supervisor, as individuals with direct knowledge of events surrounding the burial and the alleged statement regarding a "mistake." (Fact Nos. 8, 16, 18-19.) Defendant did not submit declarations from Nagaraja, Pennington, or any other Sunset View representative with personal knowledge of these events, and did not submit evidence of comprehensive discovery served on Plaintiffs for the purpose of identifying all facts, witnesses, or documents supporting their claims. Defendant's showing is confined to what Powell herself did or did not personally observe, rather than what the broader evidentiary record might show.

Defendant must either present affirmative evidence establishing the facts at issue, or show that Plaintiffs lack and cannot reasonably obtain evidence to support their claims, for example, through comprehensive discovery. Defendant did neither, so it does not meet its burden under Code of Civil Procedure section 437c, subdivision (p)(2).

C. Defendant did not meet its burden on the first cause of action for breach of contract

The pleadings "set the boundaries of the issues to be resolved at summary judgment." (*Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 648.)

The complaint alleges three distinct theories of breach. First, paragraph 16 alleges that Defendant breached the parties' "express written and oral contract" where "burial plot locations exhibited by Defendants and orally agreed but not thereafter placed into the Agreement" reflected "a willful decision by Defendants to remain silent in light of a duty to disclose this material and emotionally damaging information." The incorporated factual background develops this allegation further: Plaintiffs were shown and orally agreed to a gravesite in Row 49, Grave 36 (Compl. ¶ 6B), but Defendant, "without any advisal, discussion or notice," prepared a written agreement identifying a different location, Row 47, Grave 47, and never discussed this "changed critical contract term" with Powell before she signed. (Compl. ¶ 6C.) Defendant's motion does not address this theory. Its evidence, that Powell reviewed, understood, and signed the written contract, does not negate an allegation that the substitution of terms before signing, not any subsequent conduct, amounted to

breach.

Second, the Complaint alleges the Decedent was initially interred in a third location, Row 49, Grave 39, matching neither the location shown to Plaintiffs nor the location in the contract. (Compl. ¶ 6E.) Defendant's argument concludes with the assertion that Plaintiffs' evidence "cannot and have not established that the Decedent was buried in any location other than the contracted-for grave." (Mot. 11:1-5.) This is broad enough to encompass the above theory, but no evidence Defendant cites supports it as applied here. Powell's belief that the Decedent was in Row 47, Grave 47, and her testimony that she confirmed a casket at the May 2023 disinterment, says nothing about where the Decedent was initially interred in January 2023. Powell also testified she did not know or recall which grave was opened at the time of that confirmation. (Powell Depo. 71:12-23.) Defendant's evidence therefore does not establish even that the casket Powell confirmed was in Row 47, Grave 47, let alone where the Decedent was originally buried four months earlier, and does not carry Defendant's burden.

Third, the Complaint alleges that Defendant informed Powell the Decedent's remains had been moved, following disinterment, to a fourth location, Row 47, Grave 36, and that this occurred because the original location had been sold to another party. (Compl. ¶¶ 6I, 6J.) Defendant's motion addresses this theory directly, citing Powell's testimony that "no one informed me" the Decedent had been relocated. (UMF 8.) This testimony defeats the specific allegation that Defendant told Powell her daughter's remains had been moved, since Powell's own testimony contradicts that premise of her own pleading. It does not, however, establish that Plaintiffs lack any evidence that the Decedent's remains were in fact moved by some other means. The record separately reflects that Tanya Nagaraja, the cemetery employee who sold the grave and signed the contract, told Riley "we made a mistake" on the date of the disinterment. (Plfs.' Resp. to UMF 8.) Defendant's showing defeats the allegation that Defendant directly informed Powell of a relocation, but does not establish the absence of any evidence that a relocation occurred.

Because Defendant failed to demonstrate that Powell cannot establish any theory of breach reasonably encompassed within the complaint's allegations, it has not satisfied its initial burden on the first cause of action for breach of contract.

D. Defendant did not meet its burden on the third cause of action for negligence

Defendant attacks the breach element of the negligence cause of action, arguing from the finding of the California Cemetery and Funeral Bureau (CFB) that there was "insufficient evidence to support a violation of the Bureau's laws, rules, or regulations." (Mot. 14:6-9; UMF 11.) Defendant's separate statement asserts that Powell "verified, under penalty of perjury, the authenticity and genuineness" of that finding. Plaintiffs' response to UMF 12 clarifies that Powell admitted only that the letter concluding the CFB's investigation is authentic, not that the conclusions within it are true. Admitting a document is genuine is not admitting that its contents are true. Powell's verification shows only that the letter exists and says what it says, not that the CFB's conclusion is correct or that Sunset View did not breach its duty.

Defendant cites no authority establishing that a finding by CFB is binding, preclusive, or otherwise dispositive of a negligence claim asserted in a civil action. The Court is not persuaded that the CFB's finding of insufficient evidence to support a regulatory violation establishes, as a matter of law, that

no breach of the duty of care occurred.

The Court notes that the record also does not establish what the CFB actually investigated or on what basis it reached its finding. The separate statement offers only Powell's testimony that she submitted a complaint and a single sentence from the Bureau's finding letter. (UMF Nos. 10-11.) Neither Powell's complaint nor the documentation the CFB reviewed is offered, the specific regulations the CFB assessed are never identified, and there is no showing that any such regulation addresses burying a decedent in the wrong location or moving remains without authorization. On this record, the Court cannot determine what the CFB examined or how its conclusion bears on the duty of care at issue here.

Defendant also argues the negligence cause of action fails because "Powell's own testimony forecloses any showing of causation." (Mot. 15:16.) Defendant's causation argument is that Powell's emotional distress predated the burial and cannot be attributed to Sunset View's conduct. Defendant contends Powell experienced sleeplessness, nightmares, and emotional distress before the Decedent's burial, due to the Decedent's death, and that the "primary" cause of her distress is therefore not Defendant's conduct. (UMF Nos. 13, 14.) Defendant relies on Powell's testimony that these symptoms began before any issue about the burial was raised, and that the primary cause of her distress was the death of her daughter. (Mot. 15:8-19.) The Court has reviewed this testimony, and it does not show that Powell experienced no emotional distress or harm as a result of the events at issue in this case. In response to a question about the harm she experienced as a result of Defendant's conduct, Powell separately testified that she felt Defendant had not been truthful with her about these matters, and "it hurts really bad. It hurts." (See Powell Depo. 87:6-18.)

Defendant's causation argument also does not reach the entire cause of action. The negligence cause of action is asserted by both Powell and Riley. Nothing in Defendant's motion addresses Riley's claimed emotional distress, or its cause. Defendant has therefore not met its burden as to Riley's negligence claim, regardless of whether its showing is sufficient as to Powell.

E. Evidentiary matters

Defendant requests judicial notice of the Plaintiffs complaint filed on January 10, 2025, and the CFB written determination following its investigation of Powell's administrative complaint. The Court takes judicial notice of the existence of both documents and of the fact that the CFB determination states that "upon review of the complaint and applicable documentation collected, there is insufficient evidence to support a violation of the Bureau's laws, rules, or regulations." The Court does not take notice of the truth of that statement or other factual matter in either document. (Evid. Code, § 452, subds. (c), (d).)

Defendant has not met its burden under Code of Civil Procedure section 437c, subdivision (p)(2), of showing by admissible evidence that one or more elements of Plaintiffs' causes of action cannot be established, or that there is a complete defense thereto. As such, there is no need to address Defendant's objections to Plaintiffs' evidence submitted in opposition to the motion. (Code Civ. Proc., § 437c, subd. (q) ["In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of

the motion"].)

IV. Conclusion

For the foregoing reasons, the Motion for Summary Judgment, or in the Alternative, Summary Adjudication, is **denied**. The Court will entertain an application to file a renewed motion by Defendant, provided it is not simply a "reformatted, condensed, and cosmetically repackaged" version of this motion. (See *Patterson v. Sacramento City Unified School Dist.* (2007) 155 Cal.App.4th 821, 827.)

6. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF SECOND AMENDED COMPLAINT**
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

Please see Line 7.

7. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: PLAINTIFF'S SECOND AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

The demurrer is **sustained without leave to amend**, as discussed below. The motion to strike is **denied as moot**.

I. Factual Background

The Second Amended Complaint ("SAC") here involves tax sales of real property by Contra Costa County (erroneously sued as County Board of Supervisors of Contra Costa County) to plaintiff, Praveen Gupta. Plaintiff purchased the parcels by way of auction. One parcel (APN 264-081-013-7) was purchased in February of 2014 while the other (APN 264-081-014-5) was purchased in February of 2016. (SAC, ¶¶4.) Plaintiff alleges that the County sold the parcels despite lack of an easement. (SAC, ¶¶5-7.)

Plaintiff alleges that the County has assessed the parcels consistent with them being accessible by the easement over neighboring land. (SAC, ¶12) Nonetheless, a court judgment in April 2024 found plaintiff's properties had been landlocked at the time he purchased them, as well as since that time. (*Ibid.*)

While not described in detail in the SAC, the Court takes judicial notice of the Statement of Decision by the trial judge in that case, the Honorable Terri Mockler, who heard testimony, visited the site, and reviewed numerous documentary exhibits. (See Request for Judicial Notice in Support of Opposition to Demurrer to Complaint, filed September 22, 2025, Ex. B [Notice of Entry of Order with attached Statement of Decision].) Judge Mockler found in favor of the defendant neighbors (*id.* at 20), making numerous factual and legal findings, including, but not limited to (1) plaintiff's disputes with the neighboring owners pre-dated his purchase in 2016, (2) the City of Orinda did not misrepresent